

Smt Latha Sharma vs Sri Ramesh Vyas @ Manoj on 19 October, 2010

Bench: K.L.Manjunath, B.Manohar

IN THE HIGH COURT OF KARNATAKA, BANGALORE

DATED mls THE \9'""' DAY OF OCTOBER, .2C':i'Q.--REj"VE:-«V

i9RESENT

THE HON'BLE MRJUSTICEIi.'i;.IvLAN\$JU1'£fi\$f\$I<i

AND. . .

THE HONBLE MR. JU515:§:«E

MEA.No.77.62 Qi+""2c\$fJj7 [Ec) L

BETWEEN: "

Smt.Latha Sharma, --

D/0.Narendra Sharma;V1'-- E g

Aged about 29 years, 5j ~ "

Residing at No.5, _ .

NanjundappaA_Lai1.g;"' V1.;__ _ .,

Shanthinagar, W " .4 _

Bangalore. . E ...APPELLANT

(By Sri.S.Naga1'aja V&VV1VI K.R.Shobha, Advocates)

5359.;

X'/_'yas v.Man0j,

S/ 0.' -Late Ch zimpalav Yvas,

Aged about 35 years,

V, 1"'~Residing__at Ke;.a_1'a.-- Village,

Bittoda Tailuk, a V

~ -« Jzsdapur disujict,

, -RajaE.than._..é RESPONDENT

MFA filed U/s. 19(1) of Family Court Act. against the Judgment and decree dated: 24.03.2007 passed in MC.No.69l / 2005 on the file of Principal Judge, Family:'C_o'iirt, Bangalore, dismissing the petition □led U/s. l3(l)..~i.aj"of Hindu Marriage Act. seeking for divorce. This MFA having been heard and .resetr{reld"

on for pronouncement of Judgernent this day,' J., delivered the following: ' " _ ~
JUDGMaNT.ia*i Appellant is the petitionerirmirilil./llVC,No.09ll'/'2l005. filed this
appeal challenging decree dated 24-3-2007 made by the Family Court,
Bangaloifal:\~i.,'_:\\"~5:7.0 A

2. The follows:

The appellant/petitioner filed a petition under Section 13(1)(ia) 'grand. Marriage Act seeking for solemnized with the respondent on petitioner has contended that the respondent legally wedded husband and their marriage place 5-2-1998 at Jagadguru Udaaseen Ashram, as per the Hindu rituals and customs. It was an éa arranged marriage. After the marriage, they lived together at Bangalore tiil 8»~2--1998, thereafter they left to Caictljtrri'.g:l'he respondent and his father were working Factory. After one month of stay j':n""tl1«e'rnari.tal'CE:ou's'e at Calcutta, the petitioner came back her B.Corr1 examination to be in the meantime, the father of the__ service. Hence, the respondents family The petitioner joined atAEiše'ia,,1.ag.ftlodhpur District, Rajasthan State of respondent died in May 199v9';h"VI§, casuexoflyéthe petitioner that after the death ulthe respondent and his mother started rnen"tal"torture to the petitioner. Since tinabllev to bear the physical and mental tort'u.re,_e.lshef'i-ryvaswhospitalised. During her stay in the ,lgrhospital;-the_resipondent and his mother failed to take care of 'A A1' petitioner's parents came know of her and her mother went to Rajasthan from Av Bangalore to take care of the petitioner and thereafter, the petitioner was forced to come back with her mo'ther""..to Bangalore in May 1999. Subsequently, in the month 2000, the petitioner along with V-l1'er---.'parental to Rajasthan for annual ceremony of her «. that time, due to the intervention,r:r:"of elderg the compromise was broughtj--in l'rthe""petiti'on'e}~ jfnned the respondent in her marital was an unemployed, .yto:fl~lyderabad in the month of June an employment at his sister's p1ao'elmIn*xtl'f1e 2000, the petitioner conceived\ respondent insisted the petitioneryto gohbyaek. mother's place at Bangalore. in the monthélof February 2001, when she was prelnahtof she was sent to Bangalore. Thereafter, the 'April 2001. the marriage of petitioner's sister The respondent had been to Bangalore to marriage. However, he did not stay with the Ar petitioner. The petitioner gave birth to a female child on 20"" June 2001. Even though the birth of child was the respondent, he failed to visit the petitioner.-j::i~iovve'vei',:'.V_'in the month of September 2001, he--"c'arn,e to search of an employment. He joinedia negligent attitude, he has lost also, . his stay in Bangalore, he nevexistayed pe□ionjer. After termination of his service he demanded Rs.50,000/-- froxn. Since the parents of the the said amount, the respondent'neverift_urid§ed thereafter. From September 2001 he Without caring for the petitioner -and ;I'he action of the respondent in will amount to desertion, cruelty on the petitioner. Hence, the 'petitioner had' a petition seeking for divorce. /5*

3. In pursuance to the notice issued by the Family __ Court, the respondent entered appearance and filed his objections interaiaia contending that the divorce petitionfiled petitioner is not maintairiable either fac4tjtp.a'nd denied the averments made in their pe_ti"tion§'-- _vI?iowevei*,_. he admitted the marriage betweenihpe-pe□i'onerariddrespondent ' solemnized on 5-2-1998 their the 'maritai house together at Kejala, Jodhpuiur and giving birth to the femaiechild respondent has contended he was looking after her with gas a dutiful husband.

flower, «not discharge her marital obligations _ towards his mother as dutiful Wife. it is of the respondent that the petitioner used to pick up him for trivial issues and not preparing food and she was not doing any work in the marital house. She "has no respect for the mother of the respondent. He denied that immediately on the birth of female child on 5/ 20-6-2001 he did not visit the house of the petitioner --to see the child. Further, he also denied that he has denied Rs.50,000/- from the parents of the petitioner. him, he has looked after the petitioner 'and bestowing all his love and affection has never deserted the petitioner' sought 'for'; of it the petition.

4. On the basis of the pleading. Q-f the Family Court framed the, 1% of the Q. 1] . it

(i) Whether the proved that the : respondent after the solemnization of his marriage --vw'lt_h._her'; has treated her cruelly during her stay with him, which warrants for _ . I granting the relief of divorce?

" the petitioner has proved that the after the solemnization of his marriage with her, has deserted her continuously for a period of 2 years immediately preceding the presentation of this petition, which warrants for granting the. ___ relief of divorce?

5. The petitioner in order to prove her case herself as P.W.1 and got marked EX.F; 'I' to E. P. E _s1,1ppor'L1 of her contention. Though opportunities were given to respondent to lead his evidence, he did not step forward to the witness box. However, the plea of the respondent was thoroughly cross-examined

6. The petitioner reiterated the averments made : he r. §'cross-examination the petitioner has marriage was an arranged marriage. The » it not related to her. The respondent's sister the proposal of the respondent. The respondent's sister is familiar to the grandfather of the 'deposed that she has not produced any evidence to show that due to the torture and harassment she admitted to the Hospital. She was also not aware as where the respondent is working; how much salary he is A"

drawing. She further deposed that after completion of her B.Com. Exam she joined the respondent at Rajasthan. Though she was born in Rajasthan, staying in Bangalore for the last 25 years' since her working as a salesman in Bangalore. She studied in college, Bangalore. Her parents came to her hospitalization at Jodhpur and brought her to Bangalore. the month of April 2000, once. to Rajasthan along with her the well-wishers dispute petitioner and respondent and she stayed in. In September 2000, the petitioner gave birth to a female child in June, 2001. In September 2001, the respondent came to Bangalore in search of an appointment. However, he did not visit the petitioner. He demanded Rs.50,000/- for the business, on refusal he had deserted the respondent. From the year 2001, there is no cohabitation.

She has the suggestion made by the advocate for the Respondent during her stay in the matrimonial home, the respondent is looking after her nicely. The respondent is not the witness box though an opportunity was given to the Family Court taking into consideration documentary evidence led by the parties holding that the petitioner has of decree of divorce either on desertion.

7. Being the judgment and decree dated 24-3-2007, made the petitioner filed the above appeal.

8. Learned counsel appearing for the respondent contended that the judgment and decree passed by

the Family Court is contrary to law and facts of the case. is an unemployed and he does not have any

source of income. He was married to the appellant as she was a B.Com graduate. After retirement of the father of the respondent, the entire family was shifted to respondent joined the appellant not to have his own income. He shifted sister was residing. The appellant allowed him to Since the respondent does not have a source of income to respondent and his mother of that she was hospitalised. to the parental house in the month of "help of well-wishers and elderly people," the parties has been resolved and the appellant was taken back to the marital home. In September she became pregnant and the her to go back to parental house. In June 2001 she gave birth to a female child, the respondent not allow to see his child. Though he was in he did not take care of his wife and child and he has deserted the appellant. This amounts to cruelty. The Family Court without considering all these aspects matter has dismissed the petition. Hence, the sought for allowing the appeal by setting aside the judgment and decree passed by the Family Court, A it

9. Though the respondent was served with the notice of the Hon'ble Court, he remained unrepresented.

10. We have perused the arguments addressed by the parties and perused the oral of the parties.

11. It is not in dispute that after the appellant and respondent are legally wedded husband and wife; their marriage was solemnized on 13-3-1998. On 8-2-1998, they left to Calcutta where the respondent was working. After one month the appellant returned back to Bangalore to take up her B.Com After the examination, in May 1998 she went to her paternal house and at that time, the respondent's family was shifted to Rajasthan. The father of the respondent died during May 1999. It is the allegation of the appellant that after the death of the respondent's father, the his mother started ill-treating her and in view of this she was hospitalised. Knowing about this the appellant's mother went to Rajasthan and back to Bangalore. In April 2000, the respondent along with her parents went to and joined the respondent/husband.

Rafasthan till she became pregnar□' " toWBangalore for the purpose of February 2001. The appellant ~ not allegation regarding the harassment eith'erV_:agai'ns't. respondent or his mother. On i-.she'l' gave to a female child. Though the Bangalore in September 2001 in search of 'e;nployAm.ent_;hejldid not take care of his wife and child. The " for 'Rfs.50,000/-- made by the respondent was rejected _tli.e'fatnher of the appellant and thereafter he has deserted the appellant and his child. The respondent does not have his own income and he is an unemployed he has notal..ta1ten care of his wife and child. From 2001 respondent has deserted his wife and child. in V. she has to join a Software Company' educational qualification of the 1"esp_ondentv.ras tnaded: > known to the appellant.____ Witholi;1t¢____ any 'jg-gtilication, the respondent has deserted his vvife'-and.

12. Section pf lithe-Z-L 'll/Iahirrfiage Act, provides that if the party" for more than 2 years, immediately p1'eoeding:"theuijiweseiitation of the petition, the petitioner is entitl_ed"for.la decree of divorce. It is the clear case of.«.5;1es"ertion" where', the respondent had deserted the appeilant for'.en1:oi'e____ than 2 years. Though the petition has a/____d____been'file*d cruelty and desertion, the appellant has not made. loutl a case for decree of divorce under cruelty is entitled for divorce under desertion. The court 2' .be'10vv§ without examining the case of desertion dismissed the iv"

:5 divorce petition, Without bestowing his attention to the claim of the appellant for the divorce under desertionx. appellant has made out a case "for grant of decree""of'<.dix}oie:e«p_ on the ground of desertion.

13. Hence we pass the following:

oRDER_ The appeal filed by the Vappiellant alloviired and judgment and decree 2005 is set aside. The marriage solen'nii:€_ed on the appellant and the responcjlent '. V _ SdI#_§____ Tudqe Sd□□Judge